

22STCV04117 22STCV04117

County: los-angeles

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Case Number: 22STCV04117 Hearing Date: September 24, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

September 24, 2026

CASE NUMBER

22STCV04117

MOTION

Motion for Reconsideration

MOVING PARTY

Plaintiff Harold

Burton Igdaloff

OPPOSING PARTY

Defendants Hany S. Fangary and Fangary Law Group

MOTION

Plaintiff Harold

Burton Igdaloff, by and through his successor-in-interest Nancy Igdaloff, individually and on behalf of the Estate of Evelyn Igdaloff, and the Igdaloff 1993 Family Trust ("Plaintiff") moves for reconsideration of this Court's order of March 23, 2026, in which this Court denied Plaintiff's motion for summary adjudication of the second cause of action in Plaintiff's complaint for breach of contract. Defendants Hany S. Fangary and Fangary Law Group ("Defendants") oppose the motion.

ANALYSIS

Code of Civil

Procedure section 1008 requires a party seeking reconsideration to "state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown" in the current motion.

(Code Civ. Proc., 1008, subd. (b).)

The moving party on a motion for reconsideration "must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time"

(Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342, internal quotations and citations omitted.)

Plaintiff argues

that the Court's ruling was erroneous, because the Court ruled based on an issue that Defendants did not raise in opposition to the motion. That is not a basis for reconsideration, as Plaintiff fails to show any new or different facts, circumstances, or law, which Plaintiff could not have raised at the hearing on the motion for summary adjudication. Furthermore, Plaintiff is incorrect. The Court's ruling was based on Plaintiff's failure to meet Plaintiff's burden as the moving party on motion for summary adjudication. Plaintiff bears that burden, regardless of whether Defendants specifically raised Plaintiff's failure to meet the burden. (See Code Civ. Proc., § 437c, subd. (p)(1); see also Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241.) Accordingly, the motion for reconsideration is denied.

Plaintiff relies

on Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, which is not

on point. In that case, the Court of Appeal noted that a trial court may grant a motion for summary judgment based on a legal issue that the moving party does not tender in its moving papers if the issue is based on undisputed facts before the court, and the opposing party has an opportunity to respond to the issue. (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 70.) Here, the Court did not grant Plaintiff's motion based on an issue Plaintiff did not raise in the moving papers. Instead, the Court denied the motion for Plaintiff's failure to meet the burden of the moving party. *Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59 is irrelevant.

Likewise, Plaintiff's reliance on *San Diego Watercrafts v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308 is misplaced. In that case, the Court of Appeal ruled that the trial court cannot consider motion submitted for the first time in a reply in support of a motion for summary judgment, as the opposing party has not had the opportunity to respond. (*San Diego Watercrafts v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 314, 316.) Here, the Court did not consider evidence submitted in connection with reply papers. Instead, the Court ruled that Plaintiff did not meet the burden of the moving party.

Finally, Plaintiff's reliance on a footnote in *Case v. State Farm Mutual Automobile Ins. Co., Inc.* (2018) 30 Cal.App.5th 397 is unavailing. In that case, the Court of Appeal noted that it could affirm summary adjudication on a theory that the trial court did not rely upon if the parties address that theory. (*Case v. State Farm Mutual Automobile Ins. Co., Inc.* (2018) 30 Cal.App.5th 397, 410, fn. 5.) The ability of the Court of Appeal to review an order on summary judgment is irrelevant to whether this Court should reconsider its order on Plaintiff's motion for summary adjudication.

Plaintiff also argues that the Court has denied Plaintiff "an opportunity to meaningfully litigate the question of whether she stated her specific amount of damages . . .," and therefore trial of this matter "will be far more costly and complex" (Plaintiff's Motion for Reconsideration, pp. 13-14.) The Court

did not deny Plaintiff the opportunity to bring a motion for summary adjudication on her breach of contract claim.

Plaintiff brought such a motion, but failed to meet her burden to show Plaintiff is entitled to summary adjudication.

The Court cannot grant a motion for summary adjudication on which Plaintiff did not meet that burden.

Plaintiff is to

give notice of this order, and file proof of service of such.